

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
EXCLUSION – VARIOUS EXCLUDED MATERIALS – CALIFORNIA

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph 2., **Exclusions of COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY (SECTION 1 – COVERAGES)**, AND PARAGRAPH 2., **Exclusions of COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY (SECTION 1 – COVERAGES)**:

1. This insurance does not apply to "bodily injury", "property damage", or "personal and advertising injury" arising, directly or indirectly, out of, caused by, resulting from, contributed to, or aggravated by, in whole or in part, any "excluded materials".
2. This exclusion applies whether injury or damage occurs in whole or in part through the actual or alleged or threatened inhalation of, injection of, contact with, exposure to, existence of, use of, removal of, manufacture of, transportation of, storage of, disposal of, or presence of any "excluded material", regardless of whether any other cause, event, material or product contributed concurrently or in any sequence to such injury or damage.
3. This insurance does not apply to any loss, cost or expense arising out of any:
 - a. Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "excluded materials"; and
 - b. Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of "excluded materials".
4. "Materials" mean any elements or combination of elements existing in nature or manufactured, whether or not a product, and whether or not used or incorporated in any product or any work. Excluded "materials" include:
 - a. Asbestos.
 - b. Lead.
 - c. Arsenic.
 - d. Silica or silica dust.
 - e. Fire retardant treated plywood unless the plywood meets the acceptance criteria for Fire-Retardant-Treated wood (AC66) standards by the ICC Evaluation Service, Inc.
 - f. "Entran Pipe". "Entran Pipe" is a brand and consists of a flexible hose system used for radiant heat under surfaces such as floors and driveways.
 - g. "CCA Wood Preservatives". "CCA Wood Preservatives" means any wood preservative product containing chromated copper arsenate (CCA), a chemical mixture of arsenic, chromium, and copper.
 - h. "Airborne Manganese". "Airborne Manganese" means gas, smoke, vapor, and fumes containing Manganese.
 - i. "Nanotechnology" produced. "Nanotechnology" means the creation of functional materials, devices, and systems through control of matter on the nanometer (1 to 100+ nm) length scale and the exploitation of novel properties and phenomena developed at that scale.
 - j. Dioxin.
 - k. Polychlorinated biphenyls.
 - l. Urea/Formaldehyde.

- m.** Concrete Sulfates.
- n.** Chromated Copper Arsenate.
- o.** "Mixed Dust". "Mixed Dust" includes any dust particles from quartz, metallic or fibrous material.
- p.** Electromagnetic Radiation and Electromagnetic Fields.
- q.** Combustible or flammable products if the manufacturers' instructions for application, clean-up and storage are not strictly followed.

Other "excluded materials" may be mentioned elsewhere in endorsements or in the body of the policy itself. Their absence from the listing in Paragraph 4. is not intended to eliminate them as "excluded material" whether or not they are actually identified by that term.